

Art. 18 Right to restriction of processing (81.4%), Consent (67.8%), Data Controller (96.1%), Data Source (63.3%), Data Subject (91.2%), Legal Basis (91.9%), Legitimate Interest (88.6%), Non-Personal Data (83.9%), Organisational Measure (73.5%), Personal Data (99.7%), Required Purpose (98.4%), Retention (92.1%), Right (94.7%):

Everbyte Games Privacy Policies - Everbyte HOME MOONVALE Episode Tracker Duskwood Sidestory FAQ & Support DUSKWOOD Merchandise Shop FAQ & Support CONTACT English Deutsch Italiano Espanol Portugues Portugues Francais Polski Select Page Privacy notice for the website and games of Everbyte Data protection We take the protection of your personal data very seriously.

Consent (61.5%), Legal Basis (89.7%), Personal Data (85.8%):

We treat your personal data as confidential and in accordance with the statutory data protection regulations and this privacy notice.

Processing (99.5%), Technical Measure (73.1%):

This privacy notice applies to our processing of personal data on our website (Website) and during use of our games (Games).

Legitimate Interest (64.7%), Processing (97.4%):

Please note that the transmission of data over the internet always involves a security risk.

Processing (63.5%), Third Party (96.6%):

It is not possible to fully protect data against access by third parties.

Data Controller (93.8%), Legal Basis (71.0%), Personal Data (98.5%):

Controller The controller is the natural person or legal entity, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data.

Art. 17 Right to erasure (right to be forgotten) (68.1%), Data Subject (82.6%), Personal Data (69.8%), Processing (99.3%), Required Purpose (99.1%):

The controller responsible for processing data to provide the Website and the Games is: Everbyte GmbH Lauenbuhlstrae 59 88161 Lindenberg Website: <https://www.everbytestudio.com> Email: contact@everbytestudio.com General information on data processing Scope of the processing of personal data As a general rule, we only collect and use the personal data of our users to the extent necessary to provide our Website, our content and our services (in particular Games).

Consent (93.9%), Processing (95.4%):

We regularly only collect and use the personal data of our users after they have given their consent to such processing.

Consent (76.0%), Legal Basis (99.1%):

An exception applies in cases where it is not possible to obtain consent in advance for factual reasons and processing is permitted by legal regulations.

Legal Basis (98.5%):

Legal basis for the processing of personal data Where we obtain the data subjects consent to the processing of personal data, the legal basis for the processing of personal data is Art.

Contract (94.3%):

For the processing of personal data which is necessary to perform a contract to which the data subject is a party, the legal basis is Art.

Contract (71.4%):

This also applies to processing operations that are necessary to take steps prior to entering into a contract.

Legal Basis (61.7%), Legitimate Interest (67.0%), Processing (99.5%):

Where personal data must be processed to comply with a legal obligation to which our company is subject, the legal basis for processing is Art.

Legitimate Interest (96.5%), Right (94.2%):

Where personal data must be processed to safeguard a legitimate interest of our company or a third party, and where the interests, fundamental rights and fundamental freedoms of the data subject do not override such legitimate interest, the legal basis for processing such data is Art.

Data Controller (90.6%), Legitimate Interest (64.4%):

In the event that vital interests of the data subject or another natural person require the processing of personal data, the legal basis is Art.

Art. 17 Right to erasure (right to be forgotten) (65.9%), Processing (98.2%), Required Purpose (75.3%), Retention (95.3%):

Erasure of data and storage period The personal data of data subjects is erased or blocked when the purpose for which it was stored no longer exists.

Retention (84.7%):

It describes the type, purpose and scope of data processing in the context of the Website.

Legal Basis (91.0%), Retention (94.7%):

The data may be stored beyond such time where the European or national legislator provided for this in Union law regulations, laws or other legal regulations to which the controller is subject.

Legal Basis (76.1%), Processing (67.7%), Retention (97.6%):

Data is also blocked or erased when a storage period required by the aforementioned legal norms

expires unless we must continue to store the data for the execution or performance of a contract.

Automated Decision Making (65.5%), Non-Personal Data (91.0%), Processing (99.5%):

Provision of the Website and creation of logfiles Every time our Website is accessed, our system automatically collects data and information from the system of the computer accessing our website.

Non-Personal Data (79.4%), Personal Data (99.2%), Processing (97.9%), Retention (75.8%):

In this context, the following data is collected for a limited period of time: Users IP address Date and time of access Name of the file that was accessed and its URL Status code of the access request Size of the requested data in bytes Referrer URL (website from which the access request originates) Browser, operating system and interface of the visitor The data is stored in the logfiles of our system.

Required Purpose (94.3%), Retention (77.1%):

This data is only required for the analysis of any technical problems and will be erased within 14 days.

Non-Personal Data (73.4%), Required Purpose (98.4%):

The system must temporarily store the users IP address to enable the provision of the Website and the Games to the users devices.

Required Purpose (70.4%), Retention (80.3%):

For this purpose, the users IP address must be stored for the duration of the session.

Required Purpose (99.4%):

Data is stored in logfiles to ensure the functionality of the Website and the Games.

Processing (82.5%), Required Purpose (96.7%):

In addition, the data is used to optimise the Website and the Games and to ensure the security of our IT systems.

Required Purpose (89.2%):

In this context, data is not analysed for marketing purposes or used to identify a person.

Processing (97.3%), Required Purpose (99.2%):

The aforementioned collection of data to provide the Website and the storage of data in logfiles are indispensable for the operation of the Website and the Games.

Art. 21 Right to object (62.4%), Right (67.2%):

Consequently users are not entitled to object to such collection or storage.

Data Subject (69.8%), Organisational Measure (62.2%):

Contact us You can contact us by using the contact form provided on our Website or by sending us an email or a letter.

Art. 18 Right to restriction of processing (62.2%), Personal Data (97.0%):

In this context, we only store the information provided by you in your inquiry, including the provided contact data, for the purpose of processing the inquiry and in the event of any follow-up questions.

Required Purpose (77.7%):

Given that you are writing to us, our replying to your inquiry is ultimately in your interest too, and you are aware that we need to process your data to reply to your inquiry.

Required Purpose (61.3%), Retention (93.8%):

The data will be erased when it is no longer needed for achieving the purpose for which it was collected.

Retention (94.8%):

This applies when the relevant conversation with the user has been finished.

Retention (71.7%):

The conversation shall be deemed finished when the circumstances show that the issue in question has been fully resolved.

Technical Measure (97.7%):

Use of cookies We use what is referred to as session cookies or flash cookies on our Website.

Technical Measure (95.1%):

Cookies are text files that are stored in or by the browser on the users computer.

Required Purpose (75.4%):

This cookie contains a characteristic string of characters that enables a website to unambiguously identify the browser the next time it accesses the website.

Required Purpose (83.7%):

The user data collected using technically necessary cookies is not used to determine the users identity or to create user profiles.

Data Controller (83.5%), Scale EU (77.9%):

The company responsible for all Google services provided in the European region is Google Ireland Limited (Gordon House, Barrow Street Dublin 4, Ireland).

Processing (85.8%):

When users visit our Website, the fonts are loaded afterwards using Google Fonts via a Google server.

Personal Data (90.1%):

Users support requests You can send support requests to support@everbytestudio.com.

Scale Non-EU (86.1%), Technical Measure (83.7%), Third Party (63.2%):

In the context of this external access, data such as the users IP address is sent to Google servers, including Google servers located in the USA.

Data Controller (88.6%), Recipient (64.1%):

Google services We use Google Fonts on this Website, i.e.

Contract (70.5%), Organisational Measure (68.9%), Processing (99.7%):

Google processes the data in the USA on the basis of EU standard contractual clauses and thereby offers sufficient safeguards as described in Art.

Processing (98.0%), Required Purpose (83.4%):

Social media links We maintain pages on social networks and platforms to communicate with customers, interested parties and users who are active on such networks and to be able to inform customers, interested parties and users about our services.

Personal Data (62.1%):

Further information regarding Googles use of the data, as well as options for settings and objections, can be found on Googles web pages available at: <https://policies.google.com/technologies/partner-sites?hl=en>.

Data Controller (60.2%), Third Party (90.6%):

Therefore our Website contains a link to the website of Facebook, operated by Facebook Inc., 1 Hacker Way, Menlo Park, CA 94025, USA, or, for EU residents, by Facebook Ireland Ltd., 4 Grand Canal Square, Grand Canal Harbour, Dublin 2, Ireland (Facebook).

Data Controller (89.8%):

the Google fonts provided by the company Google Inc.

Third Party (84.3%):

Our website also refers to the website of Twitter, operated by Twitter Inc., 1355 Market Street, Suite 900, San Francisco, CA 94103, USA, or, for EU residents, by Twitter International Company, One Cumberland Place, Fenian Street, Dublin 2, D02 AX07 Ireland.

Retention (83.6%):

Games We process personal data when users use our Games.

Legal Basis (93.2%):

The data required for making the Games available is processed by the relevant platform operator as the controller under data protection law.

Legal Basis (92.8%), Personal Data (81.7%):

These service providers, as the relevant controller, process invoice data, such as card details, payment information, billing addresses, as well as other information required by law.

Personal Data (94.5%), Processing (90.0%):

We will never be able to view sensitive information, such as your full credit card or bank account number, held by any of the service providers, but merely receive the payment confirmation, with its allocation to the user (order ID), the country, the payment amount and the product, as well as the date of execution.

Data Processor (80.5%), Personal Data (60.8%):

The privacy notice of the Google Play Store is available at <https://policies.google.com/privacy> The privacy notice of the Apple AppStore is available at <https://support.apple.com/HT211970> Payments We offer users the opportunity to have payments for in-app purchases processed online by the payment service providers of the platforms.

Required Purpose (86.4%):

The data processed by us for the purpose of confirming the payment will be erased when it is no longer needed for achieving the purpose for which it was collected.

Legal Basis (64.4%), Required Purpose (67.8%):

This applies when the verification of the relevant payment transaction has been completed and we were able to verify that the relevant payment transaction was authorised lawfully.

Legal Basis (76.7%), Processing (94.3%), Retention (92.2%):

Where data we have a duty to retain or store based on tax law, commercial law or other regulations is generated in the context of payments, such data will only be erased upon the expiry of the relevant retention or storage periods specified by law (cf.

Processing (96.5%):

The legal basis for storing such data is Art.

Personal Data (96.5%), Processing (89.6%):

Processing carried out via Google Play: When you make a payment using Google Play, we disclose your payment data to Google Ireland Ltd.

Processing (98.7%):

We do not disclose the data to third parties in this context.

Required Purpose (68.9%):

We have a legitimate interest in working with payment service providers and in redirecting you to them in the context of the payment process given that they facilitate payment processing for us and provide access to our services to a broader audience using such payment services and given that they also facilitate the payment process for you, as the user of such a payment service provider.

Art. 20 Right to data portability (61.6%), Processing (94.8%), Technical Measure (97.7%):

All data required for payment processing is transmitted securely using SSL technology.

Consent (85.8%):

When you use Google for payments, you agree to Google's terms of use.

Data Controller (88.5%):

Platform services and hosting Our Games are made available for purchasing via the platforms provided by Google and the Google Play Store, as well as Apple and the Apple App Store.

Recipient (62.2%):

Processing carried out via AppStore: When you make a payment using the Apple AppStore, we disclose your payment data to Apple Distribution International Ltd.

Consent (94.3%):

Sending of newsletters Where you have opted to receive a newsletter, we process the following personal data: Email address Language Users IP address Date and time of the registration for, and opening, of the newsletter The legal basis for such processing is your consent in accordance with Art.

Right (70.9%):

You can revoke this consent at any time.

Retention (92.8%):

Your data will be processed for as long as we have the relevant consent and we offer the relevant newsletter unless there is a legal requirement to store data for an additional period.

Data Controller (95.5%), Technical Measure (69.9%), Third Party (64.1%):

Game analytics For our Games Duskwood Moonvale NOX Dead City Sound of Magic Sinister Edge we use the Unity Analytics service provided by Unity Technologies ApS, Niels Hemmingsens Gade 24, 1 sal, DK-1153 Copenhagen, Denmark (Unity), to analyse game performance and player behaviour, to be able to display the players score in each new session, and to further develop the content and technology of our game.

Personal Data (93.8%):

In this context, Unity processes the following categories of personal data: A unique device identifier (e.g.

Non-Personal Data (98.1%), Personal Data (94.4%):

IDFV for iOS devices and Android ID for Android devices); IP address; country of installation (as determined based on the IP address); device manufacturer and model; platform type (iOS, Android, Mac, Windows, etc.), as well as the operating system and version running on your system or device; language, CPU information such as model, number of available CPUs, frequency and support flags

for command sets; graphics card type and manufacturer name; graphics card driver name and version (e.g.

Non-Personal Data (79.3%):

nv4disp.dll 6.10.93.71); graphics API used (e.g.

Legal Basis (98.7%), Non-Personal Data (97.6%):

OpenGL 2.1 or Direct3D 9.0c); amount of system and video RAM available; current screen resolution; version of the Unity editor used to create the game; sensor flags (e.g.

Non-Personal Data (80.7%), Personal Data (95.6%):

device support for gyroscope, contact pressure or accelerometer); application or bundle identification (App ID) of the installed game; unique advertising identifiers for iOS and Android devices (e.g.

Non-Personal Data (83.7%), Personal Data (78.0%):

IDFA or Android Ad ID); the relevant checksum of all data sent in order to check if it was transmitted correctly, as well as events completed or actions performed in the game, including the level, number of credits, the time needed to earn them, meta data regarding communication in the game and the value and details of purchases.

Required Purpose (75.1%):

In addition, it is in the interest of each user to always have the current score or to be able to restore it.

Required Purpose (79.7%):

For providing its services, Unity uses servers located in the EU and in non-EU countries, in particular in the USA.

Legal Basis (82.9%), Scale EU (80.6%):

6(1)(a) of the EU General Data Protection Regulation (GDPR).

Organisational Measure (93.4%):

In such third countries, Unity processes this data on the basis of appropriate safeguards, as described in Art.

Processing (92.5%), Third Party (72.9%):

In addition, Unity processes information regarding the delivery of advertising and the users interaction with such advertising all of which can be disclosed to advertising publishers and suppliers.

Non-Personal Data (96.7%):

For purposes of clarification: Unity collects the following data: whether you click on or tap an ad for a

new game, whether you see the ad or frequently play a game, whether other persons who are playing a game that is similar to the one you are playing have downloaded a particular new game, and whether you download and install the new game for which you are seeing advertising.

Non-Personal Data (83.8%):

In addition, Unity Ads may also collect your session information and monetisation events.

Required Purpose (87.1%):

All of this is meant to predict the types of new Games you might want to download.

Consent (68.8%):

The revocation of your consent does not affect any data processing operations carried out prior to the revocation of your consent.

Data Controller (93.2%):

Further information on the processing of personal data by Unity can be found in Unity's privacy notice available at: <https://unity.com/legal/game-player-and-app-user-privacy-policy> Tapjoy For our Games Duskwood Moonvale we use the Tapjoy service provided by Tapjoy Inc., 353 Sacramento St 6th Floor, San Francisco, CA 94111, USA (Tapjoy) to display advertising reflecting users' interests.

Non-Personal Data (81.2%), Personal Data (84.1%):

the Google Android Advertising ID (GAAID) for Android devices and the ID for Advertisers (IDFA) for iOS devices Other identifiers, such as the Google Android ID or the MAC address, which can be used as a substitute identifier or for analyses Our user ID Information on the device itself, including: Device type (smartphone, tablet and similar devices) Operating system and version Device settings with respect to advertising Model and manufacturer (example: Apple iPhone X, Samsung Galaxy S8) Screen size, screen density and other information that is relevant to the formatting and display of advertisements Information on the internet connection used to access our services, including Mobile provider Network provider Network type (WiFi or mobile network) IP address Time stamp and duration Information regarding the app used to access our services and regarding your use of the app, as well as regarding our SDK, including App version and SDK version API key (identifier for the application) Duration of the app use, information regarding the game level and your in-app purchases Where agency services are used: to connect to advertising networks, parameters relating to agency services may be sent or their collection may be facilitated Indications regarding suitability for behavioural advertising Geolocalisation data based on the perceived general location of the device based on: The IP address used to access our services Device settings specific to the location, e.g.

Non-Personal Data (87.5%), Personal Data (60.5%):

the country code of the device, the language setting and the time zone Information with respect to campaign content viewed, e.g.

Non-Personal Data (63.1%):

where and how the campaign content is displayed in the mobile app you used to access it) Whether you reacted to the request for action presented in the campaign content (e.g.

Non-Personal Data (90.2%), Personal Data (99.0%):

age, household income, gender, highest completed level of education, household composition) General location (e.g.

Legal Basis (95.6%), Legitimate Interest (63.7%), Non-Personal Data (61.8%), Personal Data (94.4%):

product preferences and opinions on products, employment status, marital status, veteran status, health information, race or ethnic origin, political views, membership information, sexual orientation, religious beliefs always subject to the applicable laws.

Processing (92.2%):

The linked pages were reviewed with respect to potential legal violations at the time when the link was created.

Required Purpose (67.2%):

These external links are only provided for entertainment purposes and visiting such websites is not required to complete the game.

Art. 18 Right to restriction of processing (70.3%), Art. 21 Right to object (63.3%), Authority (94.6%), Automated Decision Making (88.3%), Lodge Complaint (79.6%), Recipient (72.4%), Right (85.2%):

Where such processing is occurring, you may ask the controller to provide information on the following: (1) The purposes for which the personal data is being processed; (2) The categories of personal data being processed; (3) The recipients or categories of recipients to whom the personal data concerning you has been or will be disclosed; (4) The intended period for which the personal data concerning you will be stored, or, if is not possible to provide specific information on this, the criteria used to determine the storage period; (5) The existence of the right to rectify or erase the personal data concerning you, the right to restrict its processing by the controller or the right to object to such processing; (6) The existence of the right to lodge a complaint with a supervisory authority; (7) All available information relating to the origin of the data where the personal data is not collected from the data subject directly; (8) The existence of automated decision making, including profiling, in accordance with Art.

Third Party (68.9%):

You have the right to request information as to whether the personal data concerning you is transmitted to a third country or an international organisation.

Art. 16 Right to rectification (68.3%), Art. 17 Right to erasure (right to be forgotten) (84.0%), Personal Data (81.2%), Right (89.5%):

Rights Where we process personal data concerning you, you are a data subject, as defined in the GDPR, and you are entitled to the following rights vis-a-vis the controller: Right of access You may ask the controller to confirm whether we are processing personal data concerning you.

Art. 16 Right to rectification (86.0%):

Right to rectification You have the right to request that the controller rectify and/or complete personal data concerning you being processed where such data is inaccurate or incomplete.

Art. 16 Right to rectification (69.4%):

The controller must rectify such data without undue delay.

Art. 18 Right to restriction of processing (68.1%), Consent (81.9%):

Right to restriction of processing Where one of the following applies, you have the right to request that the controller restrict the processing of the personal data concerning you: (1) Where you contest the accuracy of the personal data concerning you during a period that allows the controller to verify the accuracy of the personal data; (2) Where the processing is unlawful and you oppose the erasure of the personal data and instead request the restriction of its use; (3) Where the controller no longer needs the personal data for the purposes of the processing, but you need it to assert, exercise or defend legal claims; or (4) Where you have objected to the processing in accordance with Art.

Legitimate Interest (93.5%):

Where the processing of the personal data concerning you has been restricted, such data (aside from its storage) may only be processed with your consent or for the assertion, exercise or defence of legal claims or for the protection of the rights of other natural persons or legal entities or for reasons of important public interest of the Union or of a Member State.

Organisational Measure (72.7%):

Where the processing was restricted under the conditions set out above, the controller will notify you before the restriction is lifted.

Retention (74.0%):

Right to erasure Duty to erase data You may request that the controller erase the personal data concerning you without undue delay, and the controller has a duty to erase such data where one of the following reasons applies: (a) The personal data concerning you is no longer necessary for the

purposes for which it was collected or otherwise processed.

Art. 21 Right to object (71.9%):

Due to the fact that they are technically necessary, users are not entitled to object to the processing.

Legitimate Interest (66.6%):

21(1) GDPR and it has not yet been decided whether the legitimate grounds of the controller override yours.

Art. 17 Right to erasure (right to be forgotten) (70.2%), Legal Basis (94.2%):

(e) The erasure of the personal data concerning you is required to comply with a legal obligation under Union law or the law of Member States to which the controller is subject.

Required Purpose (86.9%):

(f) The personal data concerning you was collected in the context of the offer of information society services, as referred to in Art.

Processing (80.1%):

Information provided to third parties Where the controller has published the personal data concerning you and where it has a duty to erase such data in accordance with Art.

Organisational Measure (90.8%):

17(1) GDPR, it shall take appropriate measures, including technical measures, considering the available technology and the cost of implementation, to inform controllers processing such personal data that you, as the data subject, have requested that they erase all links to such personal data or copies or replications of such personal data.

Legal Basis (87.5%), Legitimate Interest (77.9%), Right (87.5%):

Exceptions The right to erasure does not exist where the processing is necessary: (a) To exercise the right of freedom of expression and information; (b) To comply with a legal obligation which requires processing of the relevant data under the law of the Union or of Member States to which the controller is subject, or to perform a task carried out in the public interest or in the exercise of official authority vested in the controller; (c) For reasons in the public interest in the area of public health in accordance with Art.

Required Purpose (94.6%):

did you click on it to get to the advertisers website?) or whether you comply with the requirements (examples: watch a 30-second video; make a purchase) Market research information responses to market research surveys accessed via our platform are voluntary and are given in accordance with the opt-in principle.

Required Purpose (80.3%):

9(3) GDPR; (d) For archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Art.

Art. 20 Right to data portability (86.9%):

Right to data portability You have the right to receive the personal data concerning you which you provided to the controller in a structured, commonly used and machine-readable format.

Data Controller (62.4%):

You have the right to be informed about these recipients by the controller.

Art. 21 Right to object (81.2%):

Right to object You have the right to object, on grounds relating to your personal situation, at any time to processing of the personal data concerning you which is carried out on the basis of Art.

Legal Basis (66.6%):

6(1) (e) or (f) GDPR; this also applies to any profiling based on these provisions.

Art. 21 Right to object (85.3%):

Where the personal data concerning you is processed for direct marketing purposes, you have the right to object to the processing of the personal data concerning you for the purpose of such marketing at any time; this also applies to any profiling related to such direct marketing.

Right (70.1%):

In the context of the use of information society services, notwithstanding Directive 2002/58/EC, you may exercise your right to object by automated means using technical specifications.

Automated Decision Making (80.2%):

6(1)(b) GDPR; and (2) The processing is carried out using automated means.

Right (69.1%):

Right to revoke the consent required under data protection law You have the right to revoke your consent required under data protection law at any time.

Automated Decision Making (63.6%):

Automated individual decision-making, including profiling You have the right not to be subjected to a decision that is solely based on automated processing, including profiling, which has legal consequences for you or significantly adversely affects you in a similar way.

Legitimate Interest (86.6%), Organisational Measure (79.5%):

This does not apply where the decision: (1) Is necessary for the execution or performance of a contract between you and the controller; (2) Is permissible based on legal regulations of the Union or Member States to which the controller is subject and such legal regulations contain appropriate measures to safeguard your rights and freedoms, as well as your legitimate interests; or (3) Is made

with your express consent.

Right (89.0%):

With respect to the cases referred to in (1) and (3), the controller shall take appropriate measures to safeguard the rights and freedoms, as well as your legitimate interests, which, as a minimum, shall include the right to procure the intervention of a natural person on the part of the controller, the data subjects right to present his/her own point of view and the right to contest the decision.

Legal Basis (93.7%):

Right to lodge a complaint with a supervisory authority Notwithstanding any other remedy under administrative law or the right to apply to the courts, you have the right to lodge a complaint with a supervisory authority, in particular in the Member State of your habitual residence, your place of work or the place of the alleged violation, if you believe that the personal data concerning you is processed in violation of the GDPR.